

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH,
MULTAN.
JUDICIAL DEPARTMENT

EFA No 09 of 2019

Mst. Nasrin
vs
Muslim Commercial Bank Limited & 5 others

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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20.11.2019 Rana Zia ur Rehman Arif, Advocate for appellant.
Sardar Riaz Karim, Advocate for respondents.

Through this Execution First Appeal, filed under Section 22 of the Financial Institutions (Recovery of Finances) Ordinance, 2001 ("Ordinance"), the appellant has called in question the order dated 25.04.2019 passed by learned Banking Court-II, Multan, whereby the application/objection petition filed by the appellant under Order XXI Rule 54 CPC was dismissed.

2. Learned counsel for the appellant has argued that the grounds raised by the appellant have not been properly addressed by the Banking Court while dismissing her application, therefore, the impugned order is not sustainable in the eye of law having failed to determine the real controversy in issue.

3. On the other hand, learned counsel appearing on behalf of the respondents has supported the impugned order by stating that the same has validly been passed against the appellant.

4. **Heard.** Record perused.
5. The appellant has filed an objection petition seeking stay of execution of the decree against the property in her ownership and possession being legal heir of her husband/Rana Muhammad Abdullah. It is observed that earlier the husband of the appellant filed an objection petition on similar grounds which was dismissed by the Banking Court vide order dated 15.09.2016, against which the husband of the appellant preferred an appeal (EFA No. 23 of 2016) and this Court, while dismissing the same vide order dated 22.09.2016, had directed to auction the said property by observing that mortgaged property was rightly specified by the evaluator and auction proceedings were correctly initiated against the mortgaged property as the husband of the appellant had purchased it subsequent to the same having been mortgaged.
6. Thereafter when the local commissioner visited the property for putting the same to auction in execution of the decree passed by the court, the same objections have again been raised by the appellant by filing another objection petition by stating that local commissioner who visited the spot had in his report mentioned that property was not in possession of the judgment debtor, who was not available at the spot but in possession of the husband of the appellant. As the matter has earlier been decided by the Court on objection petition filed by husband of the appellant previous

to holding of the auction proceedings, which finding of the Court having not been further challenged had attained finality, therefore, could not be called in question on the basis of contrary report submitted by the Local Commissioner. Consequently, it appears that the appellant is trying to frustrate the entire execution proceedings and any indulgence at present stage of the proceedings would amount to frustrate implementation of the decree which otherwise has attained finality and would be tantamount to interference in the already decided matter which culminated by dismissal of objection petition filed by husband of the appellant. Besides the claim of the appellant that transfer of property in her name through inheritance of her husband gives her fresh cause of action is without any basis and legal justification for the reason that she had stepped into shoes of her husband and could not claim better title or rights in the property than her husband, therefore, the said claim being without any merit is repelled. The learned counsel for the appellant has failed to point out any illegality, perversity or erroneous exercise of jurisdiction to interfere in the well-founded order of the Banking Court.

7. For what has been discussed above, this appeal being devoid of any force is *dismissed*.

(Abid AZIZ SHAIKH)
Judge

(Muzamil Akhtar Shabir)
Judge

Naveed •